

Court No. - 39

Case :- WRIT - C No. - 52348 of 2014

Petitioner :- M/S Shri Hari Laxmi Ice And Cold Storage Pvt. Ltd.

Respondent :- U.P. Power Corporation Ltd. And 4 Others

Counsel for Petitioner :- Rajeev Kumar Upadhyay

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi

Hon'ble Krishna Murari,J.

Hon'ble Ashwani Kumar Mishra,J.

Heard Sri Rajeev Kumar Upadhyay, learned counsel for the petitioner and Sri Baleshwar Chaturvedi, who has accepted notice on behalf of the respondent nos.1,2 and 3.

Petitioner has approached this Court challenging the demand notice/recovery dated 14.2.2014 issued by respondent no.3 for recovery of a sum of Rs. 3,58,673/- +Rs. 35,867/- (as 10% collection charges) from him towards consumption of electrical energy.

Learned counsel for the petitioner contends that petitioner is ready and willing to deposit the entire amount in instalments.

Sri Baleshwar Chaturvedi, learned counsel appearing for the respondent-Corporation points out that under Clause 6.14 of the U.P. Electricity Supply Code, 2005, Executive Engineer, D.G.M. and General Manager are empowered with the power to extend the facility of instalments to the consumer, who are in financial distress. The petitioner may approach the relevant authorities alongwith representation in this regard.

Considering the facts and circumstances of the case, writ petition stands finally disposed of with liberty to the petitioner for making representation before the authority concerned in accordance with the provision of Clause 6.14 of the U.P. Electricity Supply Code, 2005 within a period of three weeks from today and in case, any such representation is made, the authority concerned shall proceed to decide the same in accordance with law, expeditiously preferably within a further period of one month from the date of making of the representation.

With the aforesaid observations/directions, the writ petition stands finally disposed of.

Till the disposal of the representation of the petitioner by the respondent authority, it is provided that the recovery proceedings against the petitioner shall be kept in abeyance.

Order Date :- 25.9.2014

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